

25SMCV03978 25SMCV03978

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Case Number: 25SMCV03978 Hearing Date: September 11, 2026 Dept: N

TENTATIVE RULING

Defendant Licht Family Trust's Motion for Summary Judgment is DENIED.

Defendant Licht Family Trust to give notice.

Plaintiff Jiayi Xu's Motion for Terminating Sanctions, or in the Alternative, Issue Sanctions Against Defendant Licht Family Trust is DENIED. The motion for monetary sanctions is GRANTED. Defendant and counsel of record are ordered to pay \$1,300, jointly and severally, to Plaintiff's counsel within 30 days of notice of this order.

Plaintiff Jiayi Xu to give notice.

"The basic elements of unlawful detainer for nonpayment of rent contained in Code of Civil Procedure section 1161, subdivision (2), are (1) the tenant is in possession of the premises; (2) that possession is without permission; (3) the tenant is in default for nonpayment of rent; (4) the tenant has been properly served with a written three-day notice; and (5) the default continues after the three-day notice period has elapsed." (Kruger v. Reyes (2014) 232 Cal.App.4th Supp. 10, 16.)

It is well established that a defective notice is fatal to an unlawful detainer complaint. (Wasatch Property Management v. Degrate (2005) 35 Cal.4th 1111, 1117.) "A valid three-day pay rent or quit notice is a prerequisite to an unlawful detainer action," and "[a] notice which demands rent in excess of the amount due does not satisfy [the] requirement" that the notice contain "the amount which is due." (Bevill v. Zoura (1994) 27 Cal.App.4th 694, 697; see also Code Civ. Proc., § 1161, subd. 2.)

Code of Civil Procedure section 1161, subdivision 2, requires notice of rent due within one year after rent becomes due. Plaintiff's July 17, 2025 notice demanded rent due from October 1, 2023 through July 1, 2024, which was more than one year when the notice was served.

However, as Plaintiff points out in the opposition, the complaint pleads two independent grounds for possession. Item 9a pleads nonpayment following a three-day notice, and item 11 pleads holdover after the lease expired on August 1, 2024.

Under Code of Civil Procedure section 1161, a tenant is guilty of unlawful detainer in five enumerated circumstances: (1) holding over after expiration of the lease term or termination of an employment/agency/licensee relationship; (2) continuing in possession after default in payment of rent following service of a three-day notice to pay or quit; (3) continuing in possession

after failure to perform other lease conditions or covenants following service of a three-day notice to perform or quit; (4) assigning or subletting in violation of the lease, committing waste, permitting a nuisance, or using the premises for an unlawful purpose following service of a three-day notice to quit; or (5) failing to deliver possession after giving written notice of intent to terminate

Because Defendant's MSJ has not addressed the second ground for possession in Plaintiff's complaint, and because a motion for summary judgment cannot be granted as to only a part of a cause of action, it fails.

For this reason, Defendant's Motion for Summary Judgment is DENIED.

Motion for Terminating, Issue, or Monetary Sanctions

Plaintiff moves the Court for an order imposing terminating, issue, or monetary sanctions against Defendant Licht Family Trust ("Defendant") due to Defendant's failure to comply with the Court's May 12, 2026, and February 3, 2026 orders directing Defendant to produce its Person Most Knowledgeable for deposition. Plaintiff argues that Defendant and Defendant's counsel's conduct at the May 20, 2026, date of the deposition, evidenced an intentional, coordinated, and calculated attempt to feign compliance, while making the conducting of the examination an impossibility and refusing to agree to any other time or date for the deposition prior to the commencement of trial.

If a party engages in the misuse of the discovery process, the court may impose sanctions including terminating, evidence, and monetary sanctions. (See Code Civ. Proc., § 2023.030, subd. (d).) Disobeying a court order to provide discovery is a misuse of the discovery process. (Code Civ. Proc., § 2023.010, subd. (g).) Failing to respond or to submit to an authorized method of discovery also constitutes a misuse of the discovery process. (Code Civ. Proc., § 2023.010, subd. (d).)

"The trial court has broad discretion in selecting discovery sanctions, subject to reversal only for abuse." (Doppes v. Bentley Motors, Inc. (2009) 174 Cal.App.4th 967, 992 (Doppes).) "[T]wo facts are absolutely prerequisite to imposition of the sanction: (1) there must be a failure to comply and (2) the failure must be willful." (Liberty Mut. Fire Ins. Co. v. LcL Adm'rs, Inc. (2008) 163 Cal.App.4th 1093, 1102, ellipsis omitted.) "A decision to order terminating sanctions should not be made lightly. But where a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction." (Doppes, supra, 174 Cal.App.4th at p. 992.)

Plaintiff argues that defense counsel claimed to have been involved in a traffic collision and abandoned the Zoom session; (2) the designated PMK, Annette Rubin, appeared by phone from outside a hospital without video capability and stated she had only been informed of the deposition approximately one hour beforehand; (3) no documents responsive to the demands accompanying the deposition notice were produced; and (4) defense counsel refused

every alternative date offered by Plaintiff, including Thursday, Friday, Saturday, Sunday, and Monday (Memorial Day), leaving no date available before the May 26, 2026 trial.

The court finds Defendant has failed to comply with the court's February 3, 2026 order as the PMK was not prepared, produced no documents, and defense counsel left the deposition and did not reschedule another deposition. Further, Defendant has failed to oppose this motion to provide an explanation as to the failure to produce the PMK for deposition, and the court finds that defendant's failure to comply was willful. (Deyo v. Kilbourne (1978) 84 Cal.App.3d 771, 787 ["Lack of diligence may be deemed willful in the sense that the party understood his obligation, had the ability to comply, and failed to comply."]) However, the court notes that it has not imposed monetary sanctions against Defendant for the failure to produce the PMK for deposition. The Court must take an incremental approach to discovery sanctions. (Doppes, supra, 174 Cal.App.4th at p. 992.) Further, Plaintiff has only presented one order Defendant has failed to comply with.

Put simply, “less severe sanctions [may] produce compliance with the discovery rules,” and until the Court has imposed “incrementally harsher sanctions” to curb Plaintiff’s failure to appear, the Court declines to impose “the ultimate sanction of termination.” (See Doppes, supra, 174 Cal.App.4th at p. 992.) Thus, the court finds monetary sanctions are appropriate against Defendant and its counsel of record. The Court imposes sanctions in the reduced amount of \$1,300 (\$650 an hour for 2 hours) against Defendant, payable to Plaintiff’s counsel within 30 days of notice of this order.

The Court will provide Defendant with a final opportunity to comply with the February 3, 2026 order. Defendant is ORDERED to produce the PMK and the documents within 10 days of this order. If Defendant fails to comply within 10 days of this order, Plaintiff may file a new motion for terminating sanctions on the ground that Defendant has repeatedly and willfully misused the discovery process.

Accordingly, Plaintiff Jiayi Xu’s Motion for Terminating Sanctions, and Issue Sanctions is DENIED. The motion for monetary sanctions is GRANTED. Defendant and counsel of record are ordered to pay \$1,300, jointly and severally, to Plaintiff’s counsel within 30 days of notice of this order.